

The examination is being carried out on the **following application documents**

Description, Pages

1-41 as published

Claims, Numbers

1-14 filed with entry into the regional phase before the EPO

1 The amendment filed upon entry into the regional phase before the EPO introduces subject-matter which extends beyond the content of the application as filed, contrary to Article 123(2) EPC. The amendment concerned is the following: claim 10 (ii) refers to the composition comprising specific weight ratios of the different components. Basis for this subject-matter is to be found in Tables 1 and 5. These features however are disclosed in the context of an example of an 400mg HPMC capsule and in an example of treatment of psoriasis. The generalization of this specific disclosure to any galenical formulation e.g. a 500mg capsule, or to the treatment of any skin disorder is not allowable. Claim 10 is thus not allowable under Art. 123(2) EPC.

2 Prior art:

Reference is made to the following documents; the numbering will be adhered to in the rest of the procedure.

D1 GB 2 274 058 A (SHAH ELADEVI [GB]) 13 July 1994 (1994-07-13)

D2 US 5 693 327 A (SHAH ELADEVI [GB]) 2 December 1997
(1997-12-02)

D3 DATABASE TKDL [Online] 1 January 2004 (2004-01-01),
Anonymous: "Khadirastakavathah",
XP055943610,
Database accession no. SL/440

D4 "SIMPLE FORMULATIONS FOR PRIMARY HEALTH CARE USES BASED ON AYURVEDA",
INTERNET CITATION, 1 July 2002 (2002-07-01), XP002382103,
Retrieved from the Internet:
URL:<http://forest.ap.nic.in/JFM%20CFM/CFM/Special%20Reports/FRLHT/Reports/14.%20tsm.pdf>
[retrieved on 2006-05-22]

D5 DATABASE TKDL [Online] 1 January 1987 (1987-01-01),
Anonymous: "Tvak Vikar",
XP055943615,
Database accession no. SG/161B

D6 DATABASE TKDL [Online] 1 January 1897 (1897-01-01),
Anonymous: "Mazmaza Bara-e-Qulaa Baarid",
XP055943608,
Database accession no. AH5/3470

D7 DATABASE TKDL [Online] 1 January 1990 (1990-01-01),
Anonymous: "Guducyadikasayah",
XP055943606,
Database accession no. VS/2762

D8 DATABASE TKDL [Online] 1 August 1999 (1999-08-01),
Anonymous: "Sahacaradikvathah",
XP055943601,
Database accession no. HG/615

D9 DATABASE TKDL [Online] 1 January 1926 (1926-01-01),
Anonymous: "Dawy Bara-e-Hikka",
XP055943598,
Database accession no. JA6/973A52

If not indicated otherwise the relevant passages are those mentioned in the search report.

Document D1 discloses a composition for treating skin disorders like psoriasis comprising Terminalia chebula, Terminalia bellerica, Phyllanthus embelica, Hemidesmus indicus and Tinospora cordifolia.

Document D2 discloses a composition comprising *Phyllanthus emblica*, *Hemidesmus indicus*, *Tinospora cordifolia*, *Curcuma longa*, *Terminalia chebula* and *Terminalia bellirica* for treating psoriasis or eczema.

Document D3 discloses a composition comprising *Acacia catechu*, *Terminalia bellirica*, *Phyllanthus emblica*, *Terminalia chebula*, *Azadirachta indica* and *Tinospora cordifolia* for treating eczema, psoriasis or dermatoses.

Document D4 discloses a composition comprising *Phyllanthus emblica*, *Terminalia chebula*, *Terminalia bellirica*, *Tinospora cordifolia* and *Azadirachta indica* and a composition comprising *Acacia catechu* for treating skin diseases.

Document D5 discloses a composition comprising *Acacia catechu* for diseases of the skin

Document D6 discloses a composition comprising *Terminalia chebula*, *Terminalia bellirica*, *Phyllanthus emblica*, *Acacia catechu* for treating stomatitis

Document D7 discloses a composition comprising *Tinospora cordifolia*, *Terminalia chebula*, *Terminalia bellirica* and *Phyllanthus emblica* for the treatment of skin diseases

Document D8 discloses a composition comprising *Acacia catechu* for the treatment of gingivitis

Document D9 discloses a composition comprising *Azadirachta indica* for the treatment of diseases of the skin.

3 Inventive step (Art. 56 EPC):

- 3.1 Anyone of D1-D4 can be considered as the closest prior. Claim 1 differs in that the composition comprises *Azadirachta indica*, *Acacia Catechu*, *Hemidesmus indicus*, *Phyllanthus emblica*, *Terminalia bellirica* and *Terminalia chebula*. The problem to be solved is thus defined as to provide an alternative composition for the treatment of skin disorders. In view of the disclosure of D1-D9 it would be obvious for a skilled person to provide a composition comprising *Azadirachta indica*, *Acacia Catechu*, *Hemidesmus indicus*, *Phyllanthus emblica*, *Terminalia bellirica* and *Terminalia chebula* for use in the treatment of skin disorders. Claim 1 does not involve an inventive step. The dependent claims 2-10 appear to relate to subject-matter which would be obvious for a skilled person.
- 3.2 Claims 11-14 do not involve an inventive step for the reasons set forth for claim 1.